

22STCV26120 22STCV26120

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C06%2F26%2F2026

Source SHA-256: 773ff66b6c8f279e6f93ca28b25c69516922dc32ae89c382d5f9b314327fc524

Case Number: 22STCV26120 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 11

Date: June 26, 2026

Case No: 22STCV26120 Trial Date: Not yet set

Case Name: Vargas v. Meyer, et al.

MOTION TO BE RELIEVED AS COUNSEL

[CCP § 284]

Moving Party: John Habashy of Lexicon Law, PC, Counsel for Plaintiffs Ivan and Jonathan Vargas

Responding Party: Plaintiffs, Ivan and Jonathan Vargas

RELIEF REQUESTED:

Leave for counsel to be relieved as Plaintiffs' attorney of record in this action.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle Negligence

SUMMARY OF FACTS:

This action arises from a motor vehicle accident. The Complaint alleges that on February 16, 2020, near Brand Boulevard and Broadway Boulevard in Glendale, Los Angeles County, California, Lena Meyer and Mimi Meyer ("Defendants") negligently operated their vehicle so as to cause injury and damages to Ivan Vargas and Jonathan Vargas ("Plaintiffs").

ANALYSIS:

"[T]he attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) upon the consent of both client and attorney...; (2) upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (CCP § 284; California Rules of Court, rule 3.1362.) The withdrawal request may be denied if it would cause an injustice or undue delay in proceeding; but the court's discretion in this area is one to be exercised reasonably. (Mandell v. Superior (1977) 67 Cal.App.3d 1, 4; Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

In making a motion to be relieved as counsel, the attorney must comply with procedures set forth in CRC, rule 3.1362. The motion must be made using mandatory forms:

1.

1. Notice of Motion and Motion to be Relieved as Counsel directed to the client (MC-051);

2. Declaration "stating in general terms and without compromising the confidentiality of the attorney-client relationship" the reasons that the motion was brought (MC-052); and

3. Proposed Order (MC-053).

2.

The forms must be timely filed and served on all parties who have appeared in the case. (CRC rule 3.1362.) If these documents are served on the client by mail, there must be a declaration stating either that the address where the client was served is their "current residence or business address" or "the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (CRC rule 3.1362 subd. (d)(1).)

The court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) Withdrawal is generally permitted unless there is a compelling reason to continue the representation. (Heple v. Kluge (1951) 104 Cal.App.2d 461, 462.)

Counsel filed a Notice of Motion and Motion (MC-051), Declaration in Support of Motion (MC-052) and Proposed Order (MC-053). As reason for the Motion, Counsel states: "This client is refusing to follow my advice, and as a result has placed the client and myself in a conflict that prevents me from being able to continue the representation. I will present more detailed information to the Court in an in camera setting if instructed to do so." (MC-052, ¶ 2.) The forms were served via mail on the clients and electronically served on all other parties who have appeared in this matter on April 27, 2026. (POS.) Counsel confirmed via telephone in the last 30 days that the clients' address is current. (MC-052, ¶ 3(b)(1)(b).)

Finally, there is no showing that withdrawal would cause injustice or undue delay in the proceedings as trial in this action is not yet set. Thus, the Court finds that the motion sets forth an adequate basis for withdrawal.

The motion is GRANTED.

RULING:

Counsel John Habashy's Motion to be Relieved as Counsel is GRANTED.

Counsel will be relieved effective upon the e-filing of the proof of service of the signed order upon the clients.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.